

25STCV36299 25STCV36299

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Case Number: 25STCV36299 Hearing Date: September 28, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

28, 2026

CASE NAME: Allen

Shay v. Coldwell Banker Residential Brokerage, et al.

CASE NO.: 25STCV36299

MOTION

TO STRIKE, OR ALTERNATIVELY, MOTION FOR JUDGMENT ON THE PLEADINGS

MOVING PARTY: Defendants

Levene, Neale, Bender, Yoo & Golubchik LLP and Anthony A. Friedman

RESPONDING PARTY(S): Plaintiff Allen Shay

REQUESTED RELIEF:

1. An

order striking the first amended complaint and for judgment on the pleadings

based on this court's lack of jurisdiction.

TENTATIVE RULING:

1. Motion

to strike or for judgment on the pleadings due to lack of subject matter jurisdiction is GRANTED without leave to amend.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On December 12, 2025, Plaintiff, in pro per, Allen Shay (Plaintiff) filed a complaint against Defendants Coldwell Banker Residential Brokerage, Anthony A. Friedman, Thomas Bluemel, Alfred H. Siegel, Daniel Zakaria, and Marisa Zakaria (Defendants) with causes of action for: (1) fraud; (2) conversion; (3) intentional misrepresentation; (4) promissory fraud; (5) violation of Penal Code § 496; (6) violation of CCP § 338; (7) violation of FEHA; (8) quiet title; (9) fraud in the inducement; (10) abuse of process; (11) intention infliction of emotional distress; (12) negligence; and (13) declaratory relief.

This dispute concerns Plaintiff's 2012 bankruptcy filing and valuations of Plaintiff's home on Pine Bluff Drive. Plaintiff alleges that Defendants falsely inflated the value of his home in 2015 to make it appear that the property had substantial equity, even though earlier valuations during the bankruptcy showed a steep market decline and no equity. Based on those allegedly false declarations, the bankruptcy court reversed its prior abandonment of the home and forced a sale, leading to Plaintiff's eviction and the distribution of sale proceeds to the Defendants through commissions and fees. Plaintiff claims he later discovered the fraud and suffered severe financial, emotional, and property losses as a result.

On January 6, 2026, Plaintiff filed the operative first amended complaint (FAC). The FAC is against Coldwell Banker Realty, Anthony A. Friedman, Law Firm of Levene, Neale, Bender, Yoo & Brill, Thomas Bluemel, Alfred H. Siegel, Daniel Zakaria, and Marisa Zakaria. It has the same thirteen causes of action.[1]

On June 29, 2026, Defendants Daniel and Marisa Zakaria (Zakaria) filed a demurrer to the FAC.

On July 8, 2026, Defendant Coldwell Banker Realty (Coldwell Banker) filed a demurrer to the FAC.

On August 10, 2026, Defendants Anthony A. Friedman and Levene, Neale, Bender, Yoo & Golubchik LLP (collectively Attorneys) filed the instant motion to strike, or alternatively, motion for judgment on the pleadings.

On September 16, 2026, Plaintiff filed an omnibus opposition to Attorneys' motion to strike, Zakaria's demurrer, and Coldwell Banker's demurrer. The opposition was untimely as to all motions. On September 21, Attorneys timely filed a reply and the Zakarias timely filed a reply.

LEGAL STANDARD:

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.) "When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend." (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768.)

Judgment on the Pleadings

A defendant may move for judgment on the pleadings if (i) the court does not have jurisdiction of the subject of the cause of action alleged in the complaint, or (ii) the complaint does not state facts sufficient to constitute a cause of action alleged in the complaint. (Cal. Code Civ. Proc. (CCP) § 438(b)(2), and subd. (c).) "The standard of review for a motion for judgment on the pleadings is the same as that for a general demurrer: We treat the pleadings as admitting all of the material facts properly pleaded, but not any contentions, deductions or conclusions of fact or law contained therein. We

may also consider matters subject to judicial notice." (Dunn v. County of Santa Barbara, (2006) 135 Cal. App. 4th 1281, 1298.)

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (CCP § 430.30(a); Blank v. Kirwan, (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (Ibid.)

A demurrer assumes the truth of all factual, material allegations properly pled in the challenged pleading. (Blank v. Kirwan, supra, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (Del E. Webb Corp. v. Structural Materials Co., (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (Blank, supra, 39 Cal. 3d at p. 318.)

Meet
and Confer

Prior to filing a motion to strike, the parties are required to meet and confer. (CCP § 435.) This also applies to motions for judgment on the pleadings. (CCP § 439.)

Here, no meet and confer occurred despite counsel's request to Plaintiff to do so via email. (Declaration of Allen L. Michel ¶¶ 2-5.) Still, failure to meet and confer is insufficient to grant or deny a motion to strike. (CCP § 435.5(a)(4).)

ANALYSIS:

Request for
Judicial Notice

The court GRANTS Attorneys' request for judicial notice of the FAC and various bankruptcy court filings. (Evid. Code § 452(d).) The court GRANTS Plaintiff's request for judicial notice of a bankruptcy court filing. (Ibid.) Finally, the court GRANTS Attorneys' supplemental request for judicial notice of the bankruptcy court docket and a court order denying the notice of abandonment. (Ibid.)

Motion to
Strike/MJOP

Attorneys contend relief is proper because this matter, against them, is barred under the Barton doctrine since Plaintiff did not receive permission from the bankruptcy court to file this action against Attorneys.

Plaintiff argues that the property was outside of the bankruptcy court's jurisdiction in September 2013 via an abandonment so the Barton doctrine does not apply.

Attorneys reply that Plaintiff's arguments miss the mark, he selectively applies the bankruptcy record to support his position, and the Barton doctrine applies in full.

Bankruptcy estate property may be abandoned "in one of three ways" including "a trustee may proactively abandon property that is burdensome or of inconsequential value after notice and a hearing. . . ." (Martin v. Gladstone (2023) 96 Cal.App.5th 681, 690 [emphasis added].)

The Barton doctrine provides, as summarized, "that a party must first obtain leave of the bankruptcy court before it initiates an action in another forum against a bankruptcy trustee or other officer appointed by the bankruptcy court for acts done in the officer's official capacity." (Martin, supra, 96 Cal.App.5th at p. 697.) Without such leave, the other forum lacks subject matter jurisdiction over the suit. (Ibid.)

The Barton doctrine applies when:

"(1) the plaintiff is attempting to initiate an action in another forum;" "(2) the action is against a bankruptcy trustee or other officer appointed by the bankruptcy court;" and "(3) the action is for acts done in the officer's official capacity." [2]

(Ibid. [internal quotation marks omitted].)

After reviewing the FAC, the Barton doctrine applies. First, the plaintiff is attempting to initiate an action in another forum – here. Second, the action is against a bankruptcy trustee (Siegel) and his Attorneys (Attorneys/Moving Parties). Third, the action is for actions done in the trustee's official capacity, and by extension Attorneys' actions as trustee's representatives. (See, e.g., FAC ¶¶ 13 [Siegl's valuation in December 2012], 14 [Friedman prepared a settlement agreement], 16 [Friedman retaining Bluemel], 18 [Friedman received attorneys' fees].) Therefore, the Barton doctrine applies.

Next, Plaintiff's abandonment argument fails because the property was not abandoned in 2013. While there was a notice to abandon the property, the bankruptcy court denied that request. (Attorneys' Supplemental RJN, Exhibit 9.) So, as identified by Martin, the property was not abandoned because the court ruled otherwise at a hearing.

Additionally, there are no allegations that Plaintiff obtained leave from the bankruptcy court to file this action against Attorneys. Therefore, the court lacks subject matter jurisdiction of this matter.

Finally, leave to amend is not warranted because Plaintiff has not articulated facts that this defect is reasonable capable of curing.

Accordingly, the court GRANTS Attorneys' motion to strike and/or motion for judgment on the pleadings without leave to amend.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion to strike or for judgment on the pleadings due to lack of subject matter jurisdiction is GRANTED without leave to amend.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 28, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

Upon review of the FAC, it has a different caption than the complaint but otherwise attaches the original complaint verbatim. Attorneys provided a complete copy of the FAC with their request for judicial notice.

[2]

An exception to the Barton doctrine
is in 28 U.S.C. § 959(a) which applies to claims against the bankruptcy trustee for running the business associated with the property. That exception does not apply here since the property was a residential home and there are no allegations that the trustee was operating a business.